

LW5625: ENVIRONMENTAL LAW

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Environmental Law

Subject Code

LW - Law

Course Number

5625

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW4625 Environmental Law

Exclusive Courses

Nil

Part II Course Details

Abstract

The course aims to teach students rules and principles of environmental law, which is the body of law incorporating common law doctrines and legislative enactments in pollution control and conservation of natural resources. Students are introduced to major environmental law issues with local, regional and international significance.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Discuss analytically and critically the legal system of Hong Kong and its regulatory framework in environmental protection	40	x	x	x
2	Apply the law to propose solutions to legal problems, existing and emerging in the environmental area	30	x	x	x
3	Critically evaluate the law in action, the dynamic interplay between law and other social phenomena, real-life situations and international policies and their co-evolution	30	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

	LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	- A weekly outline of the taught topics and recommended lists of reading will be distributed. Students must read the basic assigned preparatory literature and cases prior to and after each lecture. - For each week's topic, a general preparatory reading of chapters in a reputed textbook and journal articles will be assigned, which will provide a framework as well as introduce students to the detailed topics to be covered in that seminar. - The seminars are designed to explore difficult environmental law issues through advanced discussion in each weekly seminar. Seminars will be based on an interactive learning and exchange of ideas between the lecturer and the students. - Seminars will draw nexus of various aspects of environmental law. The lecturer/course leader will seek to identify students' prior knowledge and experience and fill gaps in their prior knowledge by raising critical questions which will enhance student's in-depth understanding of environmental law and its operation in practice.	1, 2, 3	3 hours/week or a total of 39 hours of teaching

2	Compulsory Assignment/ Small group activities/ Class presentations	- These activities will focus on analysis and application of concepts of environmental law to factual situations. Students are expected both to attend and to participate actively in such activities. - In order to train and develop advanced critical thinking and problem solving skills, problem based learning in class will be encouraged to allow students to identify, summarize and present relevant environmental law principles involved in particular problem based on cases or scholarly opinions. - Compulsory Assignment is aimed to develop student' s skills: such as independent research skills in retrieving primary material; analytical skill in penetrating official documents; skills of synthesis in piecing together legal materials through coherent writing. - The presentations will provide students an opportunity to express their point of view in a coherent manner and develop their presentation skills. They will also get feedback from the course leader on the content of their paper.	1, 2, 3	
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Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Class participation	1, 2, 3	15	-	No
2	Group Presentation	1, 2, 3	25	-	No

Continuous Assessment (%)

Examination (%)

60

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

The use of Generative AI tools is not allowed.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain an aggregate mark of 50% and a minimum of 50% in each of the continuous assessment and the examination elements of the assessment.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

Students must obtain an aggregate mark of 40% and a minimum of 40% in each of the continuous assessment and the examination elements of the assessment.

Formative Assessment

Participation during the interactive small group sessions/class presentations will allow students to demonstrate their capacity to understand, analyse and apply rules and principles to the problem concerned. Some of the more difficult questions will require students to demonstrate their ability to synthesise international and local environmental law material and be able to advise clients or companies in novel situations. Responses in these sessions will enable students and teachers to assess the adequacy of learning and how to improve it where necessary. Students will also receive formative feedback which will allow them to fill gaps in their knowledge and improve content of their coursework assignment/research.

Summative Assessment

Students' performance during the class participation will be assessed. This will count as 15% of the assessment (5% attendance and 10% classroom interaction). The ability of the student to approach the problem, explain it to his team and discuss the legal challenges posed will be assessed. Students will also be divided into groups to make a presentation on an environmental law aspect. This will assess their ability to synthesise primary and secondary material into a coherent and persuasive argument, which will count as 25%.

The remaining 60% of assessment is in the form of an examination. This will test knowledge and understanding of the rules and principles and ability to apply these rules and principles to particular sets of circumstances.

Assessment Rubrics (AR)

Assessment Task

Class Participation (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstrate mastery of CILOs through participation in lecture and/or tutorial discussion, which includes asking questions about areas of uncertainty, responding to questions by the lecturer/tutor. and presenting on assigned topics in class.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching basic levels

Assessment Task

Group Presentation (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Students will be divided into groups for presenting on assigned topics. Students will be graded on their understanding and application of the law, as well as their ability to provide the audience with evidence of a persuasive legal argument.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching basic levels

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

The examination will test students' ability to apply legal principles to problem style questions on topics not covered in the assignment.

Excellent

(A+, A, A-) High

Good

(B+, B, B-) Significant

Fair

(C+, C, C-) Moderate

Marginal

(D) Basic

Failure

(F) Not even reaching basic levels

Assessment Task

Class Participation (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstrate mastery of CILOs through participation in lecture and/or tutorial discussion, which includes asking questions about areas of uncertainty, responding to questions by the lecturer/tutor. and presenting on assigned topics in class.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Group Presentation (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Students will be divided into groups for presenting on assigned topics. Students will be graded on their understanding and application of the law, as well as their ability to provide the audience with evidence of a persuasive legal argument.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

The examination will test students' ability to apply legal principles to problem style questions on topics not covered in the assignment.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information**Keyword Syllabus**

- Common law doctrines dealing with environmental pollution;
- Nuisance, negligence and strict liability;
- Environmental law-making in pollution control;
- Environmental impact assessment;
- Local conservation laws;
- Regional environmental law;
- Cross-border environmental issues affecting Hong Kong and the Mainland China;
- International environmental law;
- Trade and environment

Reading List**Compulsory Readings**

Title	
1	Nil

Additional Readings

Title	
1	Recommended Journals
2	Yearbook of International Environmental Law
3	Yearbook of European Environmental Law
4	Journal of Environmental Law
5	Harvard Environmental Law Review
6	Transnational Environmental Law
7	Ecology Law Quarterly
8	American Journal of International Law
9	European Journal of International Law
10	International and Comparative Law Quarterly
11	Chinese Journal of International Law
12	Columbia Journal of Environmental Law
13	Columbia Journal of Environmental Law
14	Fordham Environmental Law Journal
15	Stanford Environmental Law Journal
16	Fordham Environmental Law Journal
17	Virginia Environmental Law Journal
18	Journal of World Energy Law & Business
19	Climate Law
20	Asia Pacific Journal of Environmental Law

21	Recommended Online Resources
22	World Resource Institute: https://www.wri.org/
23	Sustainable Energy for All: https://www.seforall.org/
24	Natural Resources Defence Council: https://www.nrdc.org/
25	Renewable Energy 21: https://www.ren21.net/
26	Bloomberg New Energy Finance: https://about.bnef.com/
27	United Nations Framework Convention on Climate Change: https://unfccc.int/
28	European Parliament Environment Committee: http://www.eea.europa.eu/themes/policy/links/Link1094717137
29	The Environment Directory: http://www.webdirectory.com/
30	Grantham Research Institute on Climate Change and the Environment: https://www.lse.ac.uk/granthaminstitute/
31	Columbia Centre on Global Energy Policy: https://www.energypolicy.columbia.edu/
32	Atlantic Council (Energy & Environment): https://www.atlanticcouncil.org/issue/energy-environment/page/2/
33	Centre for Strategic & International Studies (Energy Security & Climate Change): https://www.csis.org/programs/energy-security-and-climate-change-program
34	Recommended Podcasts
35	Political Climate
36	Energy Gang
37	Energy Policy Now
38	The Interchange
39	Energy 360
40	Columbia Energy Exchange
41	DNVGL